

DEPARTMENT OF VETERANS AFFAIRS

**Justification and Approval (J&A) for
Other Than Full and Open Competition**

Acquisition Plan Action ID: 36C776-26-AP-0521

1. Contracting Activity:

Veterans Health Administration (VHA), Program Contracting Activity Central (PCAC). The proposed procurement is for the EHRM Infrastructure Upgrades Construction project at the Bath VA Medical Center (VAMC).

2. Nature and/or Description of the Action Being Processed:

This justification is to support the EHRM Infrastructure Upgrades Construction project at the Bath VAMC that will be awarded as a firm-fixed price contract. This justification is for other than full and open competition for the procurement of certain construction materials. The use of a particular brand name for the items listed below accommodates standardization of these items throughout the facility.

- a. Security camera and monitoring system / Physical security access control system
 - i. Lenel OnGuard (Managed by M3T Corporation)
- b. Fire alarm system
 - i. Honeywell Notifier (Managed by Johnson Control)
- c. Professional Survey Services
 - i. Ground Penetrating Radar Systems (GPRS)

3. Description of Supplies/Services Required to Meet the Agency's Needs:

This procurement is for the EHRM Infrastructure Upgrades Construction project at the Bath VAMC. The scope includes everything necessary to complete the EHRM Infrastructure Upgrades Construction project that meets the requirements of the Department of Veterans Affairs. There are three brand name items listed for which the VA is not able to accept equal or alternate items. The value of the items are listed below. The VAAR Construction magnitude for the entire project is between \$20,000,000 and \$50,000,000.

- a. Security camera and monitoring system / Physical security access control system
 - i. Lenel OnGuard
 - ii. Value: [REDACTED]
 - iii. Description: Complete installation, programming, and licensing of digital video capture and recording equipment matching existing to ensure and maintain proper operation of the video surveillance system. Complete installation and programming of card readers and communication components matching existing to ensure and maintain proper operation of the existing physical access control system (PACS). Safeguarding access to all areas of the medical center to only authorized personnel only.
- b. Fire alarm system
 - i. Honeywell Notifier
 - ii. Value: [REDACTED]
 - iii. Description: Complete installation and programming of fire alarm initiating and notification appliances matching existing to ensure and maintain proper operation of the existing fire alarm system.

- c. Professional Survey Services
 - i. Ground Penetrating Radar Systems (GPRS)
 - ii. Value: [REDACTED]
 - iii. Description: Includes utility locating in the vicinity of proposed excavations, trenching, directional drilling, and conduit routing; concrete scanning to identify embedded obstructions prior to coring and penetration activities; GPS-based mapping of all located subsurface features. When required, video pipe inspection (VPI) and CCTV assessment of storm and sanitary pipelines will be performed to determine existing pipe conditions and confirm routing. All findings must be compatible with the VA's SiteMap Professional platform. These services are necessary to ensure safe excavation, accurate field conditions, and reliable subsurface information for all current and future projects.

4. Statutory Authority Permitting Other than Full and Open Competition:

- (X) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements per 41 USC §3304(a)(1) as implemented by FAR 6.302-1;
- () Unusual and Compelling Urgency per 41 USC §3304(a)(2) as implemented by FAR 6.302-2;
- () Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services per 41 USC §3304(a)(3) as implemented by FAR 6.302-3;
- () International Agreement per 41 USC §3304(a)(4) as implemented by FAR 6.302-4
- () Authorized or Required by Statute per 41 USC §3304(a)(5) as implemented by FAR 6.302-5;
- () National Security per 41 USC §3304(a)(6) as implemented by FAR 6.302-6;
- () Public Interest per 41 USC §3304(a)(7) as implemented by FAR 6.302-7;

5. Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):

These items have been standardized throughout the Bath VAMC. Installing a different manufacturers' systems will create significant duplication in costs for the facility, and in most cases the equipment will not function properly. The specific impact for not using the brand name items is listed below:

- a. Security camera and monitoring system / PACS
 - i. Lenel OnGuard (Managed by M3T Corporation)
 - ii. Impact: Any other devices and equipment not of the existing manufacturer may not provide correct interface and operability with existing monitoring, recording, and control equipment. The video surveillance system is crucial for safeguarding patients, visitors, staff, and the facility against unlawful and unauthorized activities. Any other devices and equipment not of the existing manufacturer may not provide correct interface and operability with existing PACS. The PACS is vital for authorized personnel to access key areas to provide direct patient care and safeguard critical operations of the facility. Modifications of the existing system without the correct original equipment manufacturer (OEM) components and service can compromise the integrity of the entire system. Factory trained and authorized service must be located and supported by OEM within a limited travel time to provide emergency service support.
- b. Fire alarm system

- i. Honeywell Notifier (Managed by Johnson Control)
 - ii. Impact: Any other devices and equipment not of the existing manufacturer may not provide correct interface and operability with the existing fire protection system. The fire protection system is critical for safeguarding patients, visitors, staff, and the facility. Modifications of the existing without the correct OEM components and service can compromise the integrity of the entire system. Factory trained and authorized service must be located and supported by OEM within a limited travel time to provide emergency service support.
- c. Professional Survey Services
- i. Ground Penetrating Radar Systems (GPRS)
 - ii. Impact: Any survey services performed by a contractor other than GPRS may not provide correct interface or operability with the facility's existing SiteMap subsurface database. The facility relies on SiteMap to manage and maintain its established underground utility records, which require specific data formats and standardized deliverables produced only by GPRS. Use of any other provider may result in data that cannot be incorporated into the database, creating inconsistent or incomplete records. This incompatibility could compromise the facility's ability to maintain accurate and unified subsurface information needed to support safe operations, maintenance, and future project planning. Only GPRS can ensure full compatibility with the SiteMap system and continuity of the facility's existing utility database.

6. Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:

In accordance with the Competition in Contracting Act (CICA), the components listed above are identified as brand name; however, the overall procurement will be competed as a Service-Disabled Veteran-Owned Small-Business (SDVOSB) set-aside. This Justification for Other Than Full and Open Competition will be posted to Contract Opportunities with the solicitation.

7. Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:

The Government estimate was prepared by the VA team and confirmed by the Contracting Officer's Representative (COR). The anticipated price to the Government for the items requested to be brand name is approximately [REDACTED].

The items for which brand name approval is being requested are subsequent components to the overall construction project. This procurement will be competed and based on competition; the CO will make a determination of fair and reasonable pricing prior to award.

8. Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:

The market research for the required brand name items was conducted and prepared by the COR and A/E. This information was then shared with the CO for further review. The CO was in concurrence with information provided that supported these brand name items. Approval of the items as brand name only is critical for the overall efficiency of the completed project and the entire Bath VAMC.

The market research concerning the required brand name items was previously conducted when the procurement of these items were originally purchased. The manufacturers and products are exclusively acceptable for reasons outlined in this J&A.

An additional purpose of the market research was to ensure requirements of the Buy American Act (BAA) has been met for each of the brand name items identified. The A/E team reviewed each of the compliance standards for the BAA and compared it with the components in each of the brand name items. After their thorough review, they have concluded that each item is in compliance with the BAA. See an overview below for each item:

- a. Security camera and monitoring system / PACS – Lenel OnGuard
 - i. Discussions with Carrier/Lenel technical support and a review of factory documentation confirm that specified Lenel OnGuard access control and integrated camera components are designed, assembled, and manufactured in the United States—primarily at their Pittsford, NY facility. OnGuard is approved for U.S. federal government use (including inclusion on the GSA Approved Products List and FIPS 201/HSPD-12 compliance), and meets the definition of a ‘domestic end product’ under FAR 52.225-1. Therefore, there are no concerns regarding compliance with the Buy American Act.
- b. Fire alarm system – Honeywell Notifier
 - i. Based on discussions with Honeywell technical support and a review of manufacturer documentation, it has been confirmed that the Honeywell Notifier fire alarm system components specified for this project are manufactured in the United States, primarily at facilities located in Northford, Connecticut. Therefore, there are no concerns regarding compliance with the Buy American Act.
- c. Professional Survey Services - Ground Penetrating Radar Systems (GPRS)
 - i. Discussions with industry representatives and review of available documentation confirmed that the required subsurface investigation services provided by GPRS consist of professional labor and the use of commercial survey equipment, rather than manufactured end products subject to Buy American Act (BAA) origin requirements. As no material components or finished manufactured goods are being procured as part of this service, there are no concerns regarding compliance with the Buy American Act. The services performed by GPRS therefore meet all applicable BAA provisions, and no restrictions were identified that would affect the use of GPRS for these survey requirements.

9. Any Other Facts Supporting the Use of Other than Full and Open Competition:

The new components (software and servers) must be able to tie into the existing and operational systems including the use of existing hardware. At this time, there are no competing vendors who have the programming rights to the systems, and products must be fully compatible with the existing systems being used at the Bath VAMC.

10. Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:

Not applicable. It is the responsibility of the offerors and the general contractor awarded the project to locate suppliers and obtain pricing for all materials and components, including the items listed in this justification.

11. A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:

There will be competition for the overall procurement. It will be the responsibility of the offerors to obtain pricing from the suppliers of the items and to submit a competitive proposal for the project.

12. Requirements Certification: I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

RYAN BERGMAN
Digitally signed by RYAN
BERGMAN
Date: 2026.04.07 14:52:36 -04'00'

Ryan Bergman
COR/Engineer
Bath VAMC

Date

13. Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP:](#)

- a. **Contracting Officer Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

Donald A. Marsh III
Contracting Officer
Program Contracting Activity Central

Date